

MONROE COUNTY SCU
33 N FITZHUGH STREET SUITE 100
INCOME EXECUTION
ROCHESTER NY 14614

Date: 04/19/2022

LEGAL NOTICE ENCLOSED

**IMMEDIATE ACTION
REQUIRED**

WALLACE SUPPLY LLC

2609 DEARBORN ST
EASTON PA 18045



Case ID: BX25035A1
Worker Code: E1
Employer No: 36
Employee/Obligor Name: BERMUDEZ, ERICK J
Employee/Obligor SSN: 599-16-6762

Please carefully read all documents

This package contains an **Amended** Income Withholding Order/Notice for Support (IWO).

As the Amended IWO directs, you must take immediate action to withhold support from the income of the employee/obligor named in the Amended IWO. "Income" includes any earned or unearned income including wages, salaries, and commissions and also includes benefits such as disability, workers' compensation, and unemployment insurance benefits. See Civil Practice Law and Rules (CPLR) § 5241 for a complete definition.

You must include the Remittance ID (Case ID listed above), pay date, and county name (listed above) with your payment. For your convenience, please go to the child support website at childsupport.ny.gov to:

- Obtain a payment coupon or payment listing form for use when mailing in payments to ensure that the required information is provided; or
- Use the on-line income withholding calculator to determine the maximum amount of income you can withhold for child support.

The total arrears owed as of 04/19/2022 is \$658.27. To report the issuance of a lump sum payment, e-mail: nysdulumpsum@otda.ny.gov.

Your failure to withhold or remit the support as directed in the Amended IWO may, upon a finding by the family court, result in the payment of a **civil penalty** to the creditor. If the employee/obligor never worked for you, is no longer working for you, or is not receiving benefits, you must notify the NYS Child Support Processing Center (SDU) by completing and returning the form as directed in the Amended IWO on Page 4, **Section VII. Notification of Employment Termination or Income Status. Please use black ink when completing this section.**

Please retain a copy of the Amended IWO for your records. If you have any questions about the Amended IWO, please contact the **Child Support Helpline toll-free at 888-208-4485**, Monday through Friday from 8:00 AM to 7:00 PM.



0425221100005632

OMB 0970-0154

Expiration Date: 09/30/2023

INCOME WITHHOLDING FOR SUPPORT**I. Sender Information: (Completed by the Sender)**Date: 04/19/2022☐ INCOME WITHHOLDING ORDER/NOTICE FOR SUPPORT (IWO)☒ AMENDED IWO☐ ONE-TIME ORDER/NOTICE FOR LUMP SUM PAYMENT☐ TERMINATION OF IWO☒ Child Support Enforcement (CSE) Agency ☐ Court ☐ Attorney ☐ Private Individual/Entity (Check One)

NOTE: This IWO must be regular on its face. Under certain circumstances you must reject this IWO and return it to the sender (see IWO instructions www.acf.hhs.gov/css/resource/income-withholding-for-support-instructions). If you receive this document from someone other than a state or tribal CSE agency or a court, a copy of the underlying support order must be attached.

State/Tribe/Territory NEW YORKRemittance ID (include w/payment) BX25035A1City/County/Dist./Tribe MONROEOrder ID F-0205716

Private Individual/Entity _____

Case ID BX25035A1**II. Employer and Case Information: (Completed by the Sender)**WALLACE SUPPLY LLC

Employer/Income Withholder's Name

RE: BERMUDEZ, ERICK J

Employee/Obligor's Name (Last, First, Middle)

Employer/Income Withholder's Address

599-16-6762

Employee/Obligor's Social Security Number

2609 DEARBORN ST06/25/1988

Employee/Obligor's Date of Birth

EASTON PA 18045Employer/Income Withholder's FEIN 000000000BRYANT, TONQUESE D

Custodial Party/Obligee's Name (Last, First, Middle)

Child(ren)'s Name(s) (Last, First, Middle)

BERMUDEZ, KAIDEN J

Child(ren)'s Birth Date(s)

09/24/2014**III. Order Information: (Completed by the Sender)**

This document is based on the support order from New York State. You are required by law to deduct these amounts from the employee/obligor's income until further notice.

\$ <u>174.00</u> Per <u>Every 14 Days</u>	current child support
\$ <u>87.00</u> Per <u>Every 14 Days</u>	past-due child support - Arrears greater than 12 weeks? ☐ Yes ☒ No
\$ <u>0.00</u> Per <u>Every 14 Days</u>	current cash medical support
\$ <u>0.00</u> Per <u>Every 14 Days</u>	past-due cash medical support
\$ <u>0.00</u> Per <u>Every 14 Days</u>	current spousal support
\$ <u>0.00</u> Per <u>Every 14 Days</u>	past-due spousal support
\$ <u>0.00</u> Per <u>Every 14 Days</u>	other (payments to a third or fourth party)

for a **Total Amount to Withhold** of \$ 261.00 per Every 14 Days

IV. Amounts to Withhold: (Completed by the Sender)

You do not have to vary your pay cycle to be in compliance with the *Order Information*. If your pay cycle does not match the ordered payment cycle, withhold one of the following amounts:

\$ <u>130.50</u> per weekly pay period	\$ <u>282.74</u> per semimonthly pay period (twice a month)
\$ <u>261.00</u> per biweekly pay period (every two weeks)	\$ <u>565.50</u> per monthly pay period

Lump Sum Payment: Do not stop any existing IWO unless you receive a termination order.

PAPERWORK REDUCTION ACT of 1995 (Pub. L. 104-13) STATEMENT OF PUBLIC BURDEN: The purpose of this information collection is to provide uniformity and standardization. Public reporting burden for this collection of information is estimated to average two to five minutes per response, including the time for reviewing instructions, gathering and maintaining the data needed, and reviewing the collection of information. This is a mandatory collection of information in accordance with 45 CFR 303.100 of the Child Support Enforcement Program. An agency may not conduct or sponsor, and a person is not required to respond to, a collection of information subject to the requirements of the Paperwork Reduction Act of 1995, unless it displays a currently valid OMB control number. If you have any comments on this collection of information, please contact the Employer Services Team by email at employerservices@acf.hhs.gov

Employer/Income Withholder's Name: WALLACE SUPPLY LLCEmployer/Income Withholder's FEIN: 000000000Employee/Obligor's Name: BERMUDEZ, ERICK JSSN: 599-16-6762Case ID: BX25035A1Order ID: F-0205716**V. Remittance Information: (Completed by the Sender except for the "Return to Sender" check box.)**

If the employee/obligor's principal place of employment is New York State, you must begin withholding no later than the first pay period that occurs 14 days after the date of service of the order/notice. Send payment within 7 business days of the pay date. If you cannot withhold the full amount of support for any or all orders for this employee/obligor, withhold 50 % of disposable income for all orders. If the employee/obligor's principal place of employment is not New York State, obtain withholding limitations, time requirements, the appropriate method to allocate among multiple child support cases/orders and any allowable employer fees from the jurisdiction of the employee/obligor's principal place of employment.

State-specific withholding limit information is available at www.acf.hhs.gov/css/resource/state-income-withholding-contacts-and-program-requirements. For tribe-specific contacts, payment addresses, and withholding limitations, please contact the tribe at www.acf.hhs.gov/sites/default/files/programs/css/tribal_agency_contacts_printable_pdf.pdf or www.bia.gov/tribalmap/DataDotGovSamples/tld_map.html.

You may not withhold more than the lesser of: 1) the amounts allowed by the Federal Consumer Credit Protection Act (CCPA) [15 USC §1673(b)]; or 2) the amounts allowed by the law of the state of the employee/obligor's principal place of employment if the place of employment is in a state; or the tribal law of the employee/obligor's principal place of employment if the place of employment is under tribal jurisdiction. The CCPA is available at www.dol.gov/sites/dolgov/files/WHD/legacy/files/garn01.pdf. If the Order Information section does not indicate that the arrears are greater than 12 weeks, then the employer should calculate the CCPA limit using the lower percentage.

If there is more than one IWO against this employee/obligor and you are unable to fully honor all IWOs due to federal, state, or tribal withholding limits, you must honor all IWOs to the greatest extent possible, giving priority to current support before payment of any past-due support.

If the obligor is a nonemployee, obtain withholding limits from the **Supplemental Information** section in this IWO. This information is also available at www.acf.hhs.gov/css/resource/state-income-withholding-contacts-and-program-requirements.

Remit payment to NYS Child Support Processing Center (SDU)
at PO Box 15363, Albany, NY 12212-5363

Include the Remittance ID with the payment and if necessary this locator code of the SDU/Tribal order payee _____ on the payment.

To set up electronic payments or to learn state requirements for checks, contact the State Disbursement Unit (SDU). Contacts and information are found at www.acf.hhs.gov/css/resource/sdu-eft-contacts-and-program-requirements.

☐ **Return to Sender (Completed by Employer/Income Withholder).** Payment must be directed to an SDU in accordance with sections 466(b)(5) and (6) of the Social Security Act or Tribal Payee (see Payments in Section VI). If payment is not directed to an SDU/Tribal Payee or this IWO is not regular on its face, you must check this box and return the IWO to the sender.

If Required by State or Tribal Law:

Signature of Judge/Issuing Official: _____

Print Name of Judge/Issuing Official: _____

Title of Judge/Issuing Official: _____

Date of Signature: _____

If the employee/obligor works in a state or for a tribe that is different from the state or tribe that issued this order, a copy of this IWO must be provided to the employee/obligor.

☐ If checked, the employer/income withholder must provide a copy of this form to the employee/obligor.

Employer/Income Withholder's Name: WALLACE SUPPLY LLCEmployer/Income Withholder's FEIN: 000000000Employee/Obligor's Name: BERMUDEZ, ERICK JSSN: 599-16-6762Case ID: BX25035A1Order ID: F-0205716**VI. Additional Information for Employers/Income Withholders: (Completed by the Sender)**

Priority: Withholding for support has priority over any other legal process under State law against the same income (section 466(b)(7) of Social Security Act). If a federal tax levy is in effect, please notify the sender.

Payments: You must send child support payments payable by income withholding to the appropriate State Disbursement Unit or to a tribal CSE agency within 7 business days, or fewer if required by state law, after the date the income would have been paid to the employee/obligor and include the date you withheld the support from his or her income. You may combine withheld amounts from more than one employee/obligor's income in a single payment as long as you separately identify each employee/obligor's portion of the payment. Child support payments may not be made through the federal Office of Child Support Enforcement (OCSE) Child Support Portal.

Lump Sum Payments: You may be required to notify a state or tribal CSE agency of upcoming lump sum payments to this employee/obligor such as bonuses, commissions, or severance pay. Contact the sender to determine if you are required to report and/or withhold lump sum payments. Employers/income withholders may use OCSE's Child Support Portal (ocsp.acf.hhs.gov/csp/) to provide information about employees who are eligible to receive lump sum payments and to provide contacts, addresses, and other information about their companies. Child support payments may not be made through the federal OCSE Child Support Portal.

Liability: If you have any doubts about the validity of this IWO, contact the sender. If you fail to withhold income from the employee/obligor's income as the IWO directs, you are liable for both the accumulated amount you should have withheld and any penalties set by state or tribal law/procedure, together with interest and reasonable attorney's fees. If you comply with this IWO, you will not be subject to civil liability to any individual or agency for conduct in compliance with this IWO. In New York State, pursuant to Civil Practice Law and Rules (CPLR) § 5241, upon a finding by the Family Court that you failed to withhold or remit withholdings as directed in this IWO, the Court shall issue an order directing your compliance and may direct the payment of a civil penalty not to exceed \$500 for the first instance and \$1,000 per instance for the second and subsequent instances of noncompliance.

Anti-discrimination: You are subject to a fine determined under state or tribal law for discharging an employee/obligor from employment, refusing to employ, or taking disciplinary action against an employee/obligor because of this IWO. In New York State, pursuant to CPLR § 5252, the court may direct a civil penalty not to exceed \$500 for the first instance and \$1,000 per instance for the second and subsequent instances of such discrimination, including laying off or refusing to promote an employee/obligor. Such discrimination may also be punishable as a contempt of court by fine or imprisonment or both.

Supplemental Information: (1) Priority of withholding pursuant to CPLR § 5241(h) is current support, followed by health insurance premiums, and then arrears payments. (2) If there are multiple IWOs against this employee/obligor, withhold the maximum amount permitted (see V. *Remittance Information*, above) and pay to each creditor the proportion thereof which such creditor's claim bears to the combined total. (3) Where the income of the employee or nonemployee is compensation that is not paid or payable to the obligor for personal services, there is no limit to the amount you must withhold. Otherwise the noted limit applies. (4) If the employee/obligor is reinstated or reemployed within 90 days after termination, this IWO is still in effect.

Employer/Income Withholder's Name: WALLACE SUPPLY LLCEmployer/Income Withholder's FEIN: 000000000Employee/Obligor's Name: BERMUDEZ, ERICK JSSN: 599-16-6762Case ID: BX25035A1Order ID: F-0205716**VII. Notification of Employment Termination or Income Status: (Completed by the Employer/Income Withholder)**

If this employee/obligor never worked for you or you are no longer withholding income for this employee/obligor, you must promptly notify the CSE agency and/or the sender by returning this form to the address listed in the **Contact Information** below or using OCSE's Child Support Portal (oscp.acf.hhs.gov/csp/). Please report the new employer or income withholder, if known.

☐ This person has never worked for this employer nor received periodic income.

☐ This person no longer works for this employer nor receives periodic income.

Please provide the following information for the employee/obligor:

Termination date: _____ Last known telephone number: _____

Last known address: _____

Final payment date to SDU/Tribal Payee: _____ Final payment amount: _____

New employer's or income withholder's name: _____

New employer's or income withholder's address: _____

VIII. Contact Information: (Completed by the Sender)

To Employer/Income Withholder: If you have questions, contact the Child Support Helpline by telephone: 888-208-4485, TTY 866-875-9975, Relay Service (fcc.gov/encyclopedia/trs-providers), Monday through Friday from 8:00 AM to 7:00 PM; by website: childsupport.ny.gov.

Send termination/income status notice and other correspondence to: **NYS Child Support Processing Center (SDU)** at PO Box 15368, Albany, NY 12212-5368.

To report the issuance of a lump sum payment, email: nysdulumpsum@otda.ny.gov.

To Employee/Obligor: If the employee/obligor has questions, contact the Child Support Helpline by telephone: 888-208-4485, TTY 866-875-9975, Relay Service (fcc.gov/encyclopedia/trs-providers), Monday through Friday from 8:00 AM to 7:00 PM; by website: childsupport.ny.gov.

IMPORTANT: The person completing this form is advised that the information may be shared with the employee/obligor.

Encryption Requirements:

When communicating this form through electronic transmission, precautions must be taken to ensure the security of the data. Child support agencies are encouraged to use the electronic applications provided by the federal Office of Child Support Enforcement. Other electronic means, such as encrypted attachments to emails, may be used if the encryption method is compliant with Federal Information Processing Standard (FIPS) Publication 140-2 (FIPS PUB 140-2).